

The Case for a EU Digital Enforcement Authority

1. The Core Problem: Enforcement Bias

The European Commission is the primary enforcer of the EU's digital rulebook (DMA, DSA, AI Act). However, its transformation from a purely technocratic body into a political and geopolitical entity has introduced significant risks of **enforcement bias**:

- **Downward Bias (Under-enforcement):** The Commission faces immense political pressure from the US to relax rules against American tech firms under threats of trade retaliation (e.g., past concessions on the EU digital levy and cloud certification schemes).
- **Upward Bias (Over-enforcement):** Conversely, the Commission risks yielding to domestic protectionist pressures, using vague concepts like "fairness" or "systemic risk" to unfairly penalize foreign competitors.

2. The Institutional Proposal

The paper evaluates whether delegating enforcement powers to an **independent EU agency** (modeled after financial authorities like ESMA or AMLA) would improve enforcement accuracy and credibility.

The Feasibility Test

For delegation to be justified, two conditions must be simultaneously met:

1. **Desirability:** Does independence significantly improve enforcement quality?
2. **Feasibility:** Is it legally permissible under EU law and technically practical?

3. Comparative Assessment of the "Big Three" Regulations

The author finds that the case for an independent authority is **not** equally compelling across all three frameworks:

Regulation	Suitability for Independent Agency	Rationale / Legal & Technical Obstacles
Digital Markets Act (DMA)	Unsuitable (For Now)	High Synergies & Double Jeopardy: Overlaps heavily with EU competition policy. Separating it would break down synergies between Commission directorates (DG-COMP and DG-CONNECT) and risk violating the <i>ne bis in idem</i> principle (charging a firm twice for the same infringement). It also faces the highest risk of legal challenges under the Meroni doctrine.
Artificial Intelligence (AI) Act	Unsuitable (For Now)	Institutional Flux & Knowledge Retention: The AI market and legal frameworks are evolving too rapidly (e.g., the hasty introduction of GPAI provisions after ChatGPT and the November 2025 Digital Omnibus proposal). Removing enforcement from the Commission would strip the legislative drafting body of the critical technical expertise built by the AI Office.
Digital Services Act (DSA)	Highly Advisable	Maximum Political Vulnerability: The DSA is highly exposed to internal and external political crossfire due to its intersection with freedom of speech (e.g., US House Judiciary Committee accusations of "global censorship" and the Polish presidential veto in January 2026). The rules are legally stable, making outsourcing safer.

4. Key Legal Constraints: The Meroni Doctrine

For your work with the department of legal issues in AI, **Section 4** of the paper provides a crucial legal hook regarding the delegation of powers within the EU:

- **The Traditional Limit:** The landmark **Meroni doctrine (1958)** dictates that the Commission cannot delegate wide, discretionary policy-making or rule-making powers to external bodies.
- **The Modern Relaxation:** The 2014 ESMA short-selling case significantly relaxed these boundaries, ruling that delegation *is* permissible if it involves **bounded discretion** governed by objective criteria, specific technical conditions, and judicial review by the Court of Justice (CJEU).
- **The AI/Digital Split:** Under the AI Act, enforcement is largely a "product safety" compliance check, which is highly technical and naturally carries low Meroni risk. For the DSA, the Commission has effectively bounded its own discretion via explicit election integrity guidelines, codes of conduct, and auditing regulations, clearing the legal path for an independent agency.

5. Blueprint for a New European DSA Agency

The paper strongly recommends prioritizing an independent agency for the DSA, structured closely around the AMLA model:

- **Division of Labor:** The Commission would retain the political power to *designate* Very Large Online Platforms (VLOPs). The new agency would assume autonomous day-to-day supervision, information requests, independent investigations, and the power to issue administrative fines.
- **Operational Footprint:** A back-of-the-envelope calculation suggests the agency would require **200 to 250 staff members** to monitor the 21 currently designated VLOPs/VLOSEs.
- **Establishment:** It should be built via a "staff spin-off" merging the Commission's current DSA unit (DG-CONNECT) and the **European Centre for Algorithmic Transparency (ECAT)**. Following the timeline of AMLA, it would take roughly **3 to 4 years** to become fully operational.